

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE 1 OF 4 PAGES	
2. AMENDMENT/MODIFICATION NUMBER 0001		3. EFFECTIVE DATE 07 MAY 2026		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable) 522156	
6. ISSUED BY CODE W912QR		7. ADMINISTERED BY (If other than Item 6) CODE					
W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 220 W MAIN STREET 3RD FLOOR LOUISVILLE, KY 40202-2230 UNITED STATES JACOB PRIDEMORE, EMAIL: JACOB.S.PRIDEMORE@USACE.ARMY.MIL TELEPHONE: 502-315-6228				SCD: PAS:			
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)			
				9A. AMENDMENT OF SOLICITATION NUMBER W912QR26RA049			
				☒ 9B. DATED (SEE ITEM 11) 04 MAY 2026			
				☐ 10A. MODIFICATION OF CONTRACT/ORDER NUMBER			
CODE				FACILITY CODE			

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER.

If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)
 SEE SECTION G - CONTRACT ADMINISTRATION DATA

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

See Schedule

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

Previous edition unusable

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Block 14 (Description of Amendment/Modification): SOLICITATION W912QR26RA049 FOR THE DB CONSTRUCTION OF SMALL ARMS AMMUNITION MAGAZINE LOCATED AT BLUE GRASS ARMY DEPOT, RICHMOND, KENTUCKY IS MODIFIED AS FOLLOWS:

- a. Section 00 22 16 is hereby revised and replaced in its entirety.
- b. The bidder inquiry key under Section 00 21 00 "OFFEROR'S QUESTIONS AND COMMENTS" was incorrect at original solicitation issuance. The OFFEROR'S QUESTIONS AND COMMENTS is hereby revised and replaced in its entirety.
- c. FAR 52.222-90 Addressing DEI Discrimination by Federal Contractors is hereby incorporated into the solicitation.

Section 00 00 00 - Procurement and Contracting Requirements

The following changes have been made:

INFORMATION	FROM	TO
Contract Issuing Office	W912QR W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 600 DR MARTIN LUTHER KING JR PL LOUISVILLE, KY 40202-2230 UNITED STATES	W912QR W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 220 W MAIN STREET 3RD FLOOR LOUISVILLE, KY 40202-2230 UNITED STATES

Section 00 01 15 - List of Drawing Sheets

The attachments table has changed from:

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Price Breakout Schedule	Statement of Work		21 Apr 2026			Attachment	No

0002	Electronic Proposal Submission Instructions	Statement of Work		21 Apr 2026			Attachment	No
0003	ProjNet Instructions	Statement of Work		21 Apr 2026			Attachment	No
0004	Section 00 22 16 and 00 22 18 - Evaluation Criteria	Statement of Work		21 Apr 2026			Attachment	No
0006	00 45 00 - Representation and Certifications	00 45 00 Representation and Certifications		22 Apr 2026			Attachment	No
0005	KY20260027 dtd 02JAN2026	Wage Determination		21 Apr 2026			Attachment	No

To:

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Price Breakout Schedule	Statement of Work		21 Apr 2026			Attachment	No
0002	Electronic Proposal Submission Instructions	Statement of Work		21 Apr 2026			Attachment	No
0003	ProjNet Instructions_AMND0001 07MAY2026	Statement of Work		21 Apr 2026			Attachment	No
0004	Combined Section 00 22 16 and 00 22 18_AMND0001 06MAY2026	Statement of Work		21 Apr 2026			Attachment	No
0006	00 45 00 - Representation and Certifications	00 45 00 Representation and Certifications		22 Apr 2026			Attachment	No
0005	KY20260027 dtd 02JAN2026	Wage Determination		21 Apr 2026			Attachment	No

The following contract documents were added:

Combined Section 00 22 16 and 00 22 18_AMND0001 06MAY2026
ProjNet Instructions_AMND0001 07MAY2026

The following contract documents were deleted:

ProjNet Instructions
Section 00 22 16 and 00 22 18 - Evaluation Criteria

The following contract documents Page Counts were changed:

DOCUMENT PAGE COUNTS		
DOCUMENT NAME	FROM	TO
ProjNet Instructions_AMND0001 07MAY2026		none
Combined Section 00 22 16 and 00 22 18_AMND0001 06MAY2026		none

Section 00 70 00 - Conditions of the Contract

Additional Information/Notes

The following clauses were added:

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Apr 2026		

OFFEROR'S QUESTIONS AND COMMENTS

Technical inquiries and questions relating to proposal procedures or bonds are to be submitted via Bidder Inquiry in ProjNet at <http://www.ProjNet.org/ProjNet>. As noted below, offerors shall not submit their proposals via ProjNet. Offerors shall submit their proposals in accordance with the provisions stated in the solicitation. To submit and review bid inquiry items, bidders will need to be a current registered user or self-register into system.

The Solicitation Number is: **W912QR26RA049**

The Bidder Inquiry Key is: **A36KB7-DVNC2P**

Specific Instructions for ProjNet Bid Inquiry Access:

1. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
2. Identify the Agency. This should be marked as USACE.
3. Key. Enter the Bidder Inquiry Key listed above.
4. Email. Enter the email address you would like to use for communication.
5. Select Continue. A page will then open stating a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Select Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific Instructions for Future ProjNet Bid Inquiry Access:

1. For future access to ProjNet, you will not be emailed any type of password. You will utilize your Secret Question and Secret Answer to log in.
2. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
3. Identify the Agency. This should be marked as USACE.
4. Key. Enter the Bidder Inquiry Key listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Select Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

From this page you may view all bidder inquiries or add an inquiry.

Bidders will receive an acknowledgement of their question via email, followed by an answer to their question after it has been processed by our technical team.

Offerors are requested to review the specification in its entirety and to review the Bidder Inquiry System for answers to questions prior to submission of a new inquiry.

The call center operates weekdays from 8AM to 5PM U.S. Central Time Zone (Chicago). The telephone number for the Call Center is 800-428-HELP.

Information concerning the status of the evaluation and/or award will NOT be available after receipt of bids/proposals.

NOTES:

1. Offerors shall not submit their proposals via ProjNet, but in accordance with the provisions stated in the solicitation. Any questions regarding acceptable means of submitting offers shall be made directly to the Contract Specialist identified in the solicitation.

2. Government responses to technical inquiries and questions relating to proposal procedures or bonds that are submitted to ProjNet in accordance with the procedures above are not binding on the Government unless an amendment is issued on Standard Form 30. In the case of any conflicts, the solicitation governs. Any changes or revisions to the solicitation will be made by formal amendment. Government responses will be limited to: (a) Notice that an amendment will be issued; (b) Reference to an existing requirement contained in the solicitation; or (c) Notice that a response is not necessary.
3. The ability to enter technical inquiries and questions relating to proposal procedures or bonds will be disabled ten (10) Calendar days prior to the closing date stated in the solicitation. No Government responses will be entered into the ProjNet system within five (5) calendar days prior to the closing date stated in the solicitation.

SECTION 00 22 16
PROCEDURES FOR SUBMITTAL OF OFFERS AND
PROPOSAL EVALUATION FOR PHASE ONE

1. Overview

- 1.1 The intent of this solicitation is to select one contractor for the Design-Build (DB) Construction of the Small Arms Ammunition Magazine (SAAM), Blue Grass Army Depot (BGAD), Richmond, Kentucky. The project includes the following scope: construction of a 170,000 SF Ammunition Storehouse for Magazine Small Arms Ammunition and a Munitions Surveillance Workshop and to accommodate required egress components. The facility includes loading docks, ramps, lightning protection system, fire protection and alarm systems, and cybersecurity measures, and Energy Monitoring Control Systems (EMCS) connection. Sustainability and energy enhancement measures are included. Supporting facilities include utilities (water, sewer, gas), electric service, site lighting, organizational parking, access roads, paving, sidewalks, storm drainage, information systems, and site improvements. Heating and air conditioning will be provided by a self-contained system. Comprehensive building and furnishings related to interior design services are required. Access for individuals with disabilities will be provided. Facilities will be designed to a minimum life span of 40 years in accordance with DoD's Unified Facilities Criteria (UFC 1-200-02) including energy efficiencies, building envelope and integrated building systems performance.
- 1.2 This is a two-phase procurement, and the basis of award is the Best Value Trade-Off Process. Potential offerors are invited to submit the information described in this Section 00 22 16 for review and evaluation by the Government. Following completion of the evaluation of Phase I, up to a maximum of five (5) most highly qualified offerors will be selected to participate in Phase II. **A site visit will be held for these selected offerors following the Phase II notification.** The selected offerors for Phase II will be invited to submit the information described in Section 00 22 18, Procedures for Submittal of Offers for Phase II, for review and evaluation by the Government. Following completion of the Phase II evaluation, the Contracting Officer will award a firm-fixed-price contract to the responsible offeror whom the Source Selection Authority determines conforms to the solicitation, is fair and reasonable, and offers the best overall value to the Government, all factors considered. The Government reserves the right to accept other than the lowest priced offer or to reject all offers. **NOTE: The rating information from Phase I will not be considered in Phase II or in the final selection.**
- 1.3 The target ceiling for contract award is \$74,000,000.00 based on funds made available for this project for the base plus all options. The Government cannot guarantee that additional funds can be made available for award. Offerors are under no obligation to approach this ceiling.

2. Submittal of Offers

- 2.1 Offerors submitting proposals for this project should limit submissions to data essential for evaluation of proposals so that a minimum of time and monies will have been expended in preparing information required herein. However, in order to be effectively and equitably evaluated, the proposals must include information sufficiently detailed to clearly describe the offeror's past performance and technical approach necessary for successful completion of the project. Requirements stated in this Request for Proposal (RFP) are minimums. Proposals should follow in the order of sequence set forth in the RFP. Information provided out of sequence may result in a lower rating if the evaluators cannot readily find the appropriate information.

- 2.2 Offerors shall submit their proposals to the US Army Corps of Engineers via Procurement Integrated Enterprise Environment (PIEE) as detailed in the Electronic Proposal Submission Instruction, no later than the time and date specified in Block 13 of Standard Form 1442. Mark your proposal submission to the attention of Jacob Pridemore. NOTE: The Louisville District is in the Eastern Time Zone.
- 2.3 The Government is using a two-phase procurement approach for this design/build project. For Phase I, offerors are required to submit a proposal consisting of the information identified in paragraphs 2.4, 2.5 and 2.6 below. All proposal materials shall be submitted electronically with a table of contents and section dividers. Phase I proposal sections should parallel the submission requirements identified herein.
- 2.4 Proposals: ALL SUBMISSIONS TO THIS PROPOSAL ANNOUNCEMENT SHALL BE SUBMITTED ELECTRONICALLY. No paper copies, CD-ROMs or facsimile submissions will be accepted. Electronic Proposal Submission is required through the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module <https://wawf.eb.mil/>.

Instructions on how to create a vendor account will be posted to sam.gov and can be located at:

https://www.acq.osd.mil/asda/dpc/ce/cap/docs/piee/PIEE_Solicitation_Module_Vendor_Access_Instructions.pdf

Instructions on how to submit an offer will be posted to sam.gov and can be located at:

https://picetraining.eb.mil/wbt/sol/Posting_Offer.pdf

NOTE: Do NOT enter Privacy Act Data (Personal Identification Information (PII)) in the File Description.)

Upload Completion & Deadline: Interested parties shall submit responses no later than the date specified on the solicitation document. The time & date of proposal receipt will be the upload completion / delivery time & date recorded within PIEE Solicitation Module site. Do not assume that electronic submission will occur instantaneously. Large files (e.g. 10MB or more) will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. Submissions after the deadline will be considered late and will be processed in accordance with RFO 15.107

Electronic Files: Submission shall be in a searchable Adobe PDF format.

File Naming Convention: To ensure your submission is received and processed appropriately, it is important that interested parties CAREFULLY ensure their electronic files adhere to the following naming convention:

- W912QR26RA049-FIRMNAME-VOLUME I
- W912QR26RA049-FIRMNAME-VOLUME II

Each file name shall begin with the solicitation number followed by the firm's name and a brief file description. Please see examples above.

File Organization: Although hard copies are not accepted, each file shall be clearly indexed, and logically assembled. Font size shall be 11 or larger. Pages shall be letter sized (larger page sizes (such as 11x17 foldouts, etc.) will be counted as two pages. Proposals shall be in a narrative format, organized and titled so that each section of the proposal follows the order and format of the factors. Information presented should be organized so as to pertain to only the evaluation factor in the section that the information is presented. Information pertaining to more than one evaluation factor should be repeated in each section for each factor.

Upload Completion & Deadline: Interested parties shall submit responses no later than the date specified on the solicitation document. The time & date of proposal receipt will be the upload completion / delivery time & date recorded within PIEE. Do not assume that electronic submission will occur instantaneously. Large files (e.g., 10MB or more) will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. As noted above, offerors will not receive a confirmation email but instead will receive upload confirmation in the browser following successful upload. Submissions after the deadline will be considered late and will be processed in accordance with RFO 15.107.

Electronic Files: Files shall be in their native format (i.e., doc, xls, ppt, etc.), or if in pdf format, shall be in searchable text. Text and graphics portfolios of the electronic copies shall be in a format readable by Microsoft Office or Adobe applications. Data submitted in a spreadsheet format shall be readable by MS Excel (all cells and formulas should be unlocked).

Any information, presented in a proposal that the Offeror wants safeguarded from disclosure to other parties must be identified and labeled in accordance with the requirements of Provision “RFO 52.215-1, Instructions to Offerors – Competitive Acquisition,” subparagraph (e), which is found in Section 00 21 00 of the RFP. The Government will endeavor to honor the restrictions against release requested by Offerors, to the extent permitted under United States law and regulations.

2.5 Volume I for Phase I shall be submitted electronically and include the following information:

- Volume I – Factor I: Past Performance
 - Prime Contractor
 - A/E Designer of Record (DOR)
- Volume I – Factor II: Technical Approach for Design/Build

2.6 Volume II for Phase I shall be submitted electronically and include the following information:

- Volume II – Tab A: Standard Form 1442
- Volume II – Tab B: Joint Venture Agreements
- Volume II – Tab C: Evidence of Ability to Obtain Bonding & Proof of Financial Ability
- Volume II – Tab D: Pre-Award Information

NOTE: Phase I does NOT involve pricing submission. Failure to place the required submission information under the appropriate tab (factor or sub-factor) may result in a lower rating if the evaluators cannot readily find the appropriate information.

3. Proposal Evaluation Process

- 3.1 A Source Selection Evaluation Board (SSEB) comprised of representatives of the Corps of Engineers, User/Customer, and other required personnel will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. Technical proposals (*i.e.*, the non-price evaluation factors) will be reviewed and rated without knowledge of the price offered. The number and identities of offerors will not be revealed to anyone who is not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based on the factors described herein, and the basis of award is Best Value Trade-Off, as stated above.
- 3.2 The evaluation process for Phase I essentially consists of two parts: proposal compliance/responsibility review, and technical evaluation.
- 3.2.1 Proposal Compliance/Responsibility Review: This is an initial review to ensure that all required forms and certifications are complete, and that the offeror is financially capable of sustaining performance under the contract and is able to obtain the required level of performance and payment bonds from an acceptable surety.
- 3.2.2 Technical Evaluation: The SSEB will evaluate and rate the proposals against the RFP requirements. Factor I – Past Performance will be rated using Tables 1 & 2 below. The rating will be based on overall confidence in performance, with the final confidence assessment rating based on the extent of recent, relevant past experience, and the quality of the offeror's performance. Factor II – Technical Approach for Design/Build will be rated using Table 3 below.

4. Proposal Information and Related Evaluation Factors

- 4.1 Phase I proposals will be evaluated in accordance with the factors below, listed in relative order of importance. Offerors are reminded to include their best technical proposal in their initial offer. The initial offer and subsequent Government evaluation will be the basis for the Contracting Officer's selection of up to the five (5) most highly qualified offerors to continue on to Phase II of the procurement.
- | | | |
|-----|--|--------------------------------|
| 4.2 | Volume I – Factor I: Past Performance | 1 st |
| | • Prime Contractor | Approximately Equal to A/E DOR |
| | • A/E DOR Contractor | Approximately Equal to Prime |
| 4.3 | Volume I – Factor II: Technical Approach for Design/Build | 2 nd |
| 4.4 | Volume II – Business Information | |
| | Tab A Standard Form 1442 | Not Rated |
| | Tab B Joint Venture Agreements | Not Rated |
| | Tab C Evidence of Ability to Obtain Bonding | Not Rated |

and Proof of Financial Ability

Tab D Pre-Award Information

Not Rated

4.5 Ratings:

Evaluators will apply the adjectival rating for the definition that most closely matches the evaluation.

Table 1

Past Performance Relevancy Ratings	
Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Table 2

Performance Confidence Assessments	
Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

Table 3

Combined Technical / Risk Ratings	
Adjectival Rating	Description

Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet the requirements of the solicitation, and thus, contains one or more deficiencies and is unawardable, and/or risk of unsuccessful performance is unacceptably high.

4.6 Definitions:

1. Deficiency. Any part of an offer that does not conform to a material requirement of a RFP. A material requirement is one that affects price, quantity, quality, or delivery, or that the RFP requires to be met at the time of proposal submission. See RFO 15.001.
2. Strength. An aspect of an Offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.
3. Significant Strength. An aspect of an Offeror's proposal that has appreciable merit or appreciably exceeds specified performance or capability requirements in a way that will be appreciably advantageous to the Government during contract performance.
4. Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance. See RFO 15.001.
5. Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See RFO 15.001.
6. Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the Offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).
7. Clarification. Limited exchanges between the Government and Offerors that may occur when award without negotiations is contemplated. See RFO 15.202(a)(2).
8. Adverse Past Performance. Past performance information that supports a less than satisfactory rating on any evaluation. Adverse past performance that must be addressed with Offerors includes unfavorable comments received from sources such as those received from respondents from past performance questionnaires or interviews that have not been finalized within a formal rating system.

9. Performance Confidence Assessment. Evaluation of the likelihood (or Government's confidence) that the Offeror will successfully perform the solicitation's requirements; the evaluation is based upon past performance information.

10. Recency. As it pertains to past performance information, recency is a measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant.

11. Relevancy. As it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/ teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood the past performance is an indicator of future performance.

12. Risk. As it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to the technical factor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, or the likelihood of unsuccessful contract performance.

13. Negotiations. Exchanges between the Government and the Offerors that are undertaken with the intent of allowing the Offeror to revise its proposal. Negotiations take place after establishment of the competitive range. See RFO 15.204.

5. Volume I – Factor I: Past Performance

5.1 Submission Requirements:

Prime Contractor

- 5.1.1 Provide descriptions of up to three (3) projects substantially complete or completed by the Prime Contractor within the last six (6) years (from the solicitation issue date) that are similar to this project in size and scope. Projects completed more than six (6) years before the solicitation issue date may be considered for evaluation purposes but may lessen the overall relevancy rating for that project. Projects are deemed substantially complete when at least 95% of the construction work, including commissioning activities, has been completed. If commissioning is not finalized, provide the current status of commissioning activities and description of activities remaining. Projects that do not have finalized commissioning activities may be considered for evaluation purposes but may lessen the overall relevancy rating for that project. An Indefinite Delivery Indefinite Quantity (IDIQ) contract may be submitted only if a single task order could be considered similar to this project. Task orders may not be combined in order for the project to be considered similar.

NOTE: Renovation work is NOT to be considered similar in size or scope to this requirement.

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- 5.1.2 Projects similar in size will be a minimum of 50,000 square feet (SF) of new construction.
- 5.1.3 Project similar in scope are new construction of a single-story or multi-story warehouse or other facility(s) containing storage of controlled or hazardous materials—such as ammunition, explosives, or other regulated inventory.

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- 5.1.4 The prime contractor must have self-performed at least 15% of the direct contract labor (including testing and layout personnel), exclusive of other general condition or field overhead personnel, material, equipment, or subcontractors to be considered similar.
- 5.1.5 Additional consideration may be given for each project that contains the following features:
- a) The submitted project(s) are Design/Build
 - b) Project(s) performed for the U.S. Army Corps of Engineers (USACE)
 - c) Experience with explosive safety requirements in accordance with DA PAM 385-64
 - d) Project(s) performed within the restricted area of Blue Grass Army Depot (BGAD) requiring escorts.
- 5.1.6 The following information shall be provided for each project:
- a) Project Title, Contract Number, and Location.
 - b) Current percentage of construction complete and when it was or will be completed. If project is not yet complete, provide a description of work remaining to be completed.
 - c) Scope of the project, to include purpose/use of facility.
 - d) Size of the project; differentiate square footage of new construction versus renovation (if the project includes both).
 - e) Role of firm; provide a description of type of work performed and percentage of work self-performed.
 - f) Dollar value of the project.
 - g) Whether the project was design/build or design/bid/build.
 - h) Customer Primary Point of Contact and alternate POC (name, relationship to project, agency/firm affiliation, city, state, current and correct phone number, and current and correct email address).
- 5.1.7 For this factor, also include any ratings, letters, awards, etc. which support past performance on these projects. Any of this information that is submitted shall clearly identify to which of the submitted projects it pertains. A sample Past Performance Questionnaire is attached for your convenience. If used, the Past Performance Questionnaire must be submitted by the offeror with the proposal submission and **not** sent directly to the agency from the reference. For each project, the offeror may provide information on problems encountered on the identified contracts and the offeror's corrective action.

NOTE: For purposes of evaluating past performance, the Prime Contractor is defined as the contractor identified in Block 14 of the Standard Form 1442. If more than one contractor is listed in Block 14, then a signed joint venture must be submitted with the proposal and the joint venture shall be registered as such in the System for Award Management (SAM). However, each party of the Joint Venture must submit their own Unique Entity Identifier (formerly known as DUNS number) with the JV proposal. Projects performed by contractors other than the offeror, such as teaming partners or subcontractors, will not be evaluated for past performance, unless those other contractors are part of a joint venture offeror as demonstrated by a signed joint venture agreement. If the Offeror represents the combining of two or more companies as a joint venture

for the purpose of this RFP, each company in the joint venture may submit project examples, but the total submitted by the joint venture will not exceed three (3).

In addition to the joint venture agreement, small business offerors submitting a proposal as a Mentor-Protégé JV under the SBA Mentor-Protégé program (MPP) shall submit a copy of their SBA-approved Mentor-Protégé agreement and separate joint venture agreement under Volume II, Tab B of the proposal. (See Section 7.2). Projects performed by other contractors than the offeror, such as teaming partners or subcontractors, will not be evaluated for past performance, unless those other contractors are part of a JV offeror as demonstrated by a signed JV agreement. If the offeror represents the combining of two or more companies as a JV for the purpose of this RFP, each company in the JV may submit project examples, but the total submitted by the JV will not exceed three (3).

Relevant past performance information provided for affiliates of small business offerors will be considered. Affiliates (as defined by RFO 2.101) means associated business concerns or individuals if, directly or indirectly either one controls or can control the other; or third-party controls or can control both. Affiliation will be determined in accordance with 13 CFR 121.103. In determining whether affiliation exists, the Government will consider the totality of the circumstances and may find affiliation even though no single factor is sufficient to constitute affiliation. If an offeror is submitting the past performance of an affiliate, the offeror must submit proof of affiliation pursuant to 13 CFR 121.103. Acceptable proof of affiliation includes a

5.1.8 **A/E Designer of Record (DOR):**

Provide descriptions of up to three (3) projects that have been constructed or for which construction is substantially complete within the last six (6) years (from the solicitation issue date) that are similar in size and scope (see paragraphs 5.1.2 and 5.1.3 above). Projects completed more than six (6) years before the solicitation issue date may be considered for evaluation purposes but may lessen the overall relevancy rating for that project. Projects are considered substantially complete if enough work has been performed such that it demonstrates the ability to successfully complete all phases of the project. In order to be considered similar in size and scope, the proposed A/E firm must have been the DOR on the submitted project. The listed design firm must be used on the project. No deviations will be permitted unless approved by the Contracting Officer.

5.2. **Evaluation Criteria:**

- 5.2.1 For both the Prime and DOR, the SSEB will first evaluate the relevancy of recent past performance identified in the proposal in response to paragraph 5.1 above. By using the criteria identified above, the SSEB will determine how relevant a past project is when compared to the scope, size, and magnitude of effort and complexities of the solicited project. A relevancy rating will be assigned to each submitted project using the Past Performance Relevancy Ratings Table 1 above.
- 5.2.2 For both the Prime and DOR, the SSEB will next review how well the offeror performed on those projects. The Government reserves the right to check any or all cited references to verify supplied information and to assess owner satisfaction. In addition to the information submitted by the offeror, the Government may review any other sources of relevant information for evaluating past performance, including similar projects other than those submitted by the offeror.

The Government will, at a minimum, review past performance information retrieved through the Past Performance Information Retrieval System (PPIRS), including Contractor Performance Assessment Reporting System (CPARS), using all CAGE/Unique Entity Identifier numbers identified in the offeror's proposal. Other sources may include, but are not limited to, past performance information retrieved from inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror.

- 5.2.3 The SSEB will review all past performance information collected for both the Prime and DOR. The SSEB will determine the quality of the offeror's performance, general trends, and usefulness of the information and incorporate this information into the performance confidence assessment. The SSEB will assign a final, overall Performance Confidence rating, using the ratings in the Performance Confidence Assessment table above, based on the SSEB's assessment of (1) the degree of the offer's recent, relevant experience, and (2) how well the offeror performed that experience.

NOTE: The Past Performance of both the Prime and A/E DOR will be weighted approximately equally in the establishment of the overall Performance Confidence rating.

6. Volume I – Factor II: Technical Approach for Design/Build

6.1 Submission Requirements:

- 6.1.1 Provide a narrative that describes the offeror's intended technical approach for executing design-build projects. Clearly and concisely describe the offeror's Design-Build team, and how the team will work collaboratively to ensure timely, quality completion of the project. The Technical Approach narrative shall address the information described in paragraphs 6.1.2– 6.1.4 below:
- 6.1.2 **Roles and Responsibilities:** Describe the roles and responsibilities of the offeror's Design-Build team and how their resources are utilized in order to deliver a design-build project. Describe how the design and construction process is managed throughout the entirety of a project life cycle.
- 6.1.3 **Communication Plan:** Describe interactions and communications both within the Design-Build team and with the Corps of Engineers throughout the entirety of a project life cycle.
- 6.1.4 **Risk Mitigation Plan:** Provide a comprehensive analysis of project specific risks and your plan for mitigation during contract performance and execution.

NOTE: There is a page limit of eight (8) single-sided, 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Technical Approach for Design/Build Factor.

6.2 Evaluation Criteria:

- 6.2.1 The Government will review the proposed Technical Approach and identify any strengths, weaknesses, and deficiencies in the proposal. The Government will evaluate the proposal based on the offeror's understanding of the USACE Design/Build process and how well it has demonstrated its ability to successfully execute design-build projects. Offerors are encouraged to tailor their proposal to demonstrate their approach for successfully completing the solicited Design/Build project.

The Government will evaluate the offeror's understanding of the design process and the roles of the designer of record, construction firm, and the Government reviewers. . The evaluation will be based on how well the offeror demonstrates their organizational (*i.e.*, the structure and staffing) ability to execute design/build projects, to include the integration of the design and construction firms during design and construction. Proposals demonstrating that construction personnel will be actively involved in the design process may be viewed more favorably by the SSEB. The Government will evaluate the role of the designer in maintaining design integrity throughout the process, including its key roles during construction.

Evaluation of Communication Plan: The Government will evaluate the comprehensiveness, clarity, and anticipated effectiveness of the Offeror's proposed Communication Plan. The evaluation will assess the adequacy of the methodology for ensuring seamless coordination and resolution between the Design-Build team. Additionally, the Government will evaluate the proposed framework for maintaining transparent, timely, and effective communication with the Corps of Engineers across all phases of the project life cycle (design, pre-construction, execution, and close-out).

Evaluation of Risk Mitigation Plan: The Government will evaluate the quality, depth, and credibility of the contractor's risk-mitigation plan. The evaluation will consider how effectively the offeror identifies project-specific risks and demonstrates a clear understanding of risks associated with the project's constraints, site conditions, and Government requirements.

7. Volume II –Business Information (Submit in a separate file).

7.1 Tab A: Standard Form 1442.

7.1.1 Submission Requirements:

The offeror shall complete and submit Standard Form 1442 of this solicitation.

7.1.2 Evaluation Criteria:

The Standard Form 1442 will not be rated. The form will be reviewed to determine if required information is provided, amendments are acknowledged, and the offer is signed.

NOTE: Phase I does NOT involve pricing submission.

7.2 Tab B: Joint Venture and Mentor-Protégé Agreements

7.2.1 Submission Requirements:

If more than one contractor is listed in Block 14, or the offeror listed in Block 14 is a joint venture (JV), then a signed JV agreement must be submitted with the proposal and the offeror shall be registered in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each member of the JV must submit its own Unique Entity Identifier (formally DUNS number) with the proposal.

In addition to the joint venture agreement, small business offerors submitting a proposal as Mentor-Protégé JV under the SBA Mentor-Protégé program (MPP) shall submit a copy of their SBA-approved Mentor-Protégé agreement.

7.2.2 Evaluation Criteria:

This information will be used for purpose of complete the Pre-Award Survey and will not be rated. Small business joint venture agreements must comply with the relevant regulations in Title 13 of the Code of Federal Regulations in order for an offeror to be eligible for any small business set-aside acquisitions and/or small business-related price preference.

7.3 Tab C: Evidence of Ability to Obtain Bonding & Proof of Financial Ability

7.3.1 Submission Requirements:

- A. Financial Capability. Submit Proof of Financial Ability (Most recent financial statement covering assets and liabilities). Include the name, address and telephone number of the offeror's banking institution. If the offeror is a joint venture, submit this information for each joint venture member.
- B. Bonding Capability. Submit information showing the offeror's ability to be bonded for this project. Include the name, address and telephone number of the offeror's bonding company.

7.3.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. See FAR Part 28 for information related to bonds.

If the offeror is a joint venture, submit this information with all joint venture members listed.

7.4 Tab D: Pre-Award Information

7.4.1 Submission Requirements:

- A. The offeror shall submit one completed copy of Section 00 45 00, Representations and Certification.
- B. The offeror shall submit the following information:
 - a) Number of years the firm has been in business
 - b) Name, address, and telephone numbers of two credit/trade references
 - c) A list of present commitments, including the dollar value

If the offeror is a joint venture, submit this information for each joint venture member.

- C. The offeror shall submit the name, address, and Unique Entity Identifier for any and all key subcontractors identified in the proposal.

7.4.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated.

NAVFAC/USACE PAST PERFORMANCE QUESTIONNAIRE (Form PPQ-0)	
CONTRACT INFORMATION (Contractor to complete Blocks 1-4)	
1. Contractor Information	
Firm Name:	CAGE Code:
Address:	DUNs Number:
Phone Number:	
Email Address:	
Point of Contact:	Contact Phone Number:
2. Work Performed as: ☐ Prime Contractor ☐ Sub Contractor ☐ Joint Venture ☐ Other (Explain) Percent of project work performed: If subcontractor, who was the prime (Name/Phone #):	
3. Contract Information	
Contract Number:	
Delivery/Task Order Number (if applicable):	
Contract Type: ☐ Firm Fixed Price ☐ Cost Reimbursement ☐ Other (Please specify):	
Contract Title:	
Contract Location:	
Award Date (mm/dd/yy):	
Contract Completion Date (mm/dd/yy):	
Actual Completion Date (mm/dd/yy):	
Explain Differences:	
Original Contract Price (Award Amount):	
Final Contract Price (<i>to include all modifications, if applicable</i>):	
Explain Differences:	

4. Project Description:Complexity of Work ☐ High ☐ Med ☐ RoutineHow is this project relevant to project of submission? *(Please provide details such as similar equipment, requirements, conditions, etc.)***CLIENT INFORMATION (Client to complete Blocks 5-8)****5. Client Information**

Name:

Title:

Phone Number:

Email Address:

6. Describe the client's role in the project:**7. Date Questionnaire was completed (mm/dd/yy):****8. Client's Signature:**

NOTE: NAVFAC/USACE REQUESTS THAT THE CLIENT COMPLETES THIS QUESTIONNAIRE AND SUBMITS DIRECTLY BACK TO THE OFFEROR. THE OFFEROR WILL SUBMIT THE COMPLETED QUESTIONNAIRE TO USACE WITH THEIR PROPOSAL, AND MAY DUPLICATE THIS QUESTIONNAIRE FOR FUTURE SUBMISSION ON USACE SOLICITATIONS. CLIENTS ARE HIGHLY ENCOURAGED TO SUBMIT QUESTIONNAIRES DIRECTLY TO THE OFFEROR. HOWEVER, QUESTIONNAIRES MAY BE SUBMITTED DIRECTLY TO USACE. PLEASE CONTACT THE OFFEROR FOR USACE POC INFORMATION. THE GOVERNMENT RESERVES THE RIGHT TO VERIFY ANY AND ALL INFORMATION ON THIS FORM.

*ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT
YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE*

RATING**DEFINITION****NOTE**

(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
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(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.
(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal is appropriate when a significant event occurred that the contractor had trouble overcoming which impacted the Government/Owner.
(U) Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred that the contractor had trouble overcoming and which impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an unsatisfactory rating.
(N) Not Applicable	No information or did not apply to your contract	Rating will be neither positive nor negative.

TO BE COMPLETED BY CLIENT

**PLEASE CIRCLE THE ADJECTIVE RATING WHICH BEST REFLECTS
YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE.**

1. QUALITY:	
a) Quality of technical data/report preparation efforts	E VG S M U N
b) Ability to meet quality standards specified for technical performance	E VG S M U N
c) Timeliness/effectiveness of contract problem resolution without extensive customer guidance	E VG S M U N
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (without adverse effect on performance)	E VG S M U N
2. SCHEDULE/TIMELINESS OF PERFORMANCE:	
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. <i>(If liquidated damages were assessed or the schedule was not met, please address below)</i>	E VG S M U N
b) Rate the contractor's use of available resources to accomplish tasks identified in the contract	E VG S M U N
3. CUSTOMER SATISFACTION:	
a) To what extent were the end users satisfied with the project?	E VG S M U N
b) Contractor was reasonable and cooperative in dealing with your staff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports, businesslike and communication)	E VG S M U N
c) To what extent was the contractor cooperative, businesslike, and concerned with the interests of the customer?	E VG S M U N
d) Overall customer satisfaction	E VG S M U N
4. MANAGEMENT/ PERSONNEL/LABOR	
a) Effectiveness of on-site management, including management of subcontractors, suppliers, materials, and/or labor force?	E VG S M U N
b) Ability to hire, apply, and retain a qualified workforce to this effort	E VG S M U N
c) Government Property Control	E VG S M U N
d) Knowledge/expertise demonstrated by contractor personnel	E VG S M U N
e) Utilization of Small Business concerns	E VG S M U N
f) Ability to simultaneously manage multiple projects with multiple disciplines	E VG S M U N

g) Ability to assimilate and incorporate changes in requirements and/or priority, including planning, execution and response to Government changes	E	VG	S	M	U	N
h) Effectiveness of overall management (including ability to effectively lead, manage and control the program)	E	VG	S	M	U	N
5. COST/FINANCIAL MANAGEMENT						
a) Ability to meet the terms and conditions within the contractually agreed price(s)?	E	VG	S	M	U	N
b) Contractor proposed innovative alternative methods/processes that reduced cost, improved maintainability or other factors that benefited the client	E	VG	S	M	U	N
c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back-up documentation, monthly status reports/budget variance reports, compliance with established budgets and avoidance of significant and/or unexplained variances (under runs or overruns)	E	VG	S	M	U	N
d) Is the Contractor's accounting system adequate for management and tracking of costs? <i>If no, please explain in Remarks section.</i>	Yes			No		
e) If this is/was a Government contract, has/was this contract been partially or completely terminated for default or convenience or are there any pending terminations? <i>Indicate if show cause or cure notices were issued, or any default action in comment section below.</i>	Yes			No		
f) Have there been any indications that the contractor has had any financial problems? <i>If yes, please explain below.</i>	Yes			No		
6. SAFETY/SECURITY						
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the users rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S	M	U	N
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S	M	U	N
7. GENERAL						
a) Ability to successfully respond to emergency and/or surge situations (including notifying COR, PM or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S	M	U	N
b) Compliance with contractual terms/provisions (<i>explain if specific issues</i>)	E	VG	S	M	U	N
c) Would you hire or work with this firm again? (<i>If no, please explain below</i>)	Yes			No		
d) In summary, provide an overall rating for the work performed by this contractor.	E	VG	S	M	U	N

Please provide responses to the questions above (*if applicable*) and/or additional remarks. Furthermore, please provide a brief narrative addressing specific strengths, weaknesses, deficiencies, or other comments which may assist our office in evaluating performance risk (*please attach additional pages if necessary*):

SECTION 00 22 18
PROCEDURES FOR SUBMITTAL AND EVALUATION OF OFFERORS FOR PHASE II

NOTE: Offerors are NOT to submit proposals in response to the following Phase II Evaluation Criteria until the Phase II amendment has been issued. Additionally, this section is being included as a draft for informational purposes only, the final version will be

issued with the Phase II amendment.

1. Overview

- 1.1 The intent of this solicitation is to select one contractor for the Design-Build (DB) Construction of the Small Arms Ammunition Magazine (SAAM), Blue Grass Army Depot (BGAD), Richmond, Kentucky. The project includes the following scope: construction of a 170,000 SF Magazine Ammunition Storehouse for Small Arms Ammunition and a Munitions Surveillance Workshop and to accommodate required egress components. The facility includes loading docks, ramps, lightning protection system, fire protection and alarm systems, and cybersecurity measures, and Energy Monitoring Control Systems (EMCS) connection. Sustainability and energy enhancement measures are included. Supporting facilities include utilities (water, sewer, gas), electric service, site lighting, organizational parking, access roads, paving, sidewalks, storm drainage, information systems, and site improvements. Heating and air conditioning will be provided by a self-contained system. Comprehensive building and furnishings related to interior design services are required. Access for individuals with disabilities will be provided. Facilities will be designed to a minimum life span of 40 years in accordance with DoD's Unified Facilities Criteria (UFC 1-200-02) including energy efficiencies, building envelope and integrated building systems performance.
- 1.2 This is a two-phase procurement, and the basis of award is the Best Value Trade-Off Process. Potential offerors are invited to submit the information described in this Section 00 22 16 for review and evaluation by the Government. Following completion of the evaluation of Phase I, up to a maximum of five (5) most highly qualified offerors will be selected to participate in Phase II. **A site visit will be held for these selected offerors following the Phase II notification.** The selected offerors for Phase II will be invited to submit the information described in Section 00 22 18, Procedures for Submittal of Offers for Phase II, for review and evaluation by the Government. Following completion of the Phase II evaluation, the Contracting Officer will award a firm-fixed-price contract to the responsible offeror whom the Source Selection Authority determines conforms to the solicitation, is fair and reasonable, and offers the best overall value to the Government, all factors considered. The Government reserves the right to accept other than the lowest priced offer or to reject all offers.

NOTE: The rating information from Phase I will not be considered in Phase II or in the final selection.

- 1.3 The target ceiling for contract award is \$74,000,000.00 based on funds made available for this project for the base plus all options. The Government cannot guarantee that additional funds can be made available for award. Offerors are under no obligation to approach this ceiling.

2. Submittal of Offers

- 2.1 Offerors submitting proposals for this project should limit submissions to data essential for evaluation of proposals so that a minimum of time and monies will have been expended in preparing information required herein. However, in order to be effectively and equitably evaluated, the proposals must include information sufficiently detailed to clearly describe the offeror's past performance and management capabilities necessary

for successful completion of the project. Requirements stated in this Request for Proposal (RFP) are minimums. Proposals should follow in the order of sequence set forth in the RFP. Information provided out of sequence may not be evaluated and may result in the offeror's disqualification from award.

- 2.2 Offerors shall submit their proposals to the US Army Corps of Engineers via Procurement Integrated Enterprise Environment (PIEE) as detailed in the Electronic Proposal Submission Instruction, no later than the time and date specified in Block 13 of Standard Form 1442. Mark your proposal submission to the attention of Jacob Pridemore. NOTE: The Louisville District is in the Eastern Time Zone.
- 2.3 The Government is using a two-phase procurement approach for this design/build project. For Phase II, offerors are required to submit a proposal consisting of the information identified in paragraphs 2.6 and 2.7 below. All proposed materials shall be submitted electronically with a table of contents and tabbed section dividers. The sections should parallel the submission requirements identified herein.
- 2.4 Offerors are required to submit a proposal consisting of the information identified in paragraphs 2.5, 2.6, and 2.7 below. The sections should parallel the submission requirements identified herein.
- 2.5 Proposals: ALL SUBMISSIONS TO THIS PROPOSAL ANNOUNCEMENT SHALL BE SUBMITTED ELECTRONICALLY. No paper copies, CD-ROMs or facsimile submissions will be accepted. Electronic Proposal Submission is required through the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module <https://wawf.eb.mil/>.

Instructions on how to create a vendor account will be posted to sam.gov and can be located at:

https://www.acq.osd.mil/asda/dpc/ce/cap/docs/piee/PIEE_Solicitation_Module_Vendor_Access_Instructions.pdf

Instructions on how to submit an offer will be posted to sam.gov and can be located at:

https://piectraining.eb.mil/wbt/sol/Posting_Offer.pdf

NOTE: Do NOT enter Privacy Act Data (Personal Identification Information (PII)) in the File Description.)

Upload Completion & Deadline: Interested parties shall submit responses no later than the date specified on the solicitation document. The time & date of proposal receipt will be the upload completion / delivery time & date recorded within PIEE Solicitation Module site. Do not assume that electronic submission will occur instantaneously. Large files (e.g. 10MB or more) will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. Submissions after the deadline will be considered late and will be processed in accordance with RFO 15.107.

Electronic Files: Submission shall be in a searchable Adobe PDF format.

File Naming Convention: To ensure your submission is received and processed appropriately, it is important that interested parties CAREFULLY ensure their electronic files adhere to the following naming convention:

- W912QR26RA049-FIRMNAME-VOLUME I
- W912QR26RA049-FIRMNAME-VOLUME II

Each file name shall begin with the solicitation number followed by the firm's name and a brief file description. Please see examples above.

File Organization: Although hard copies are not accepted, each file shall be clearly indexed, and logically assembled. Font size shall be 11 or larger. Pages shall be letter sized (larger page sizes (such as 11x17 foldouts, etc.) will be counted as two pages. Proposals shall be in a narrative format, organized and titled so that each section of the proposal follows the order and format of the factors. Information presented should be organized so as to pertain to only the evaluation factor in the section that the information is presented. Information pertaining to more than one evaluation factor should be repeated in each section for each factor.

Upload Completion & Deadline: Interested parties shall submit responses no later than the date specified on the solicitation document. The time & date of proposal receipt will be the upload completion / delivery time & date recorded within PIEE. Do not assume that electronic submission will occur instantaneously. Large files (e.g., 10MB or more) will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. As noted above, offerors will not receive a confirmation email but instead will receive upload confirmation in the browser following successful upload. Submissions after the deadline will be considered late and will be processed in accordance with RFO 15.107.

Electronic Files: Files shall be in their native format (i.e., doc, xls, ppt, etc.), or if in pdf format, shall be in searchable text. Text and graphics portfolios of the electronic copies shall be in a format readable by Microsoft Office or Adobe applications. Data submitted in a spreadsheet format shall be readable by MS Excel (all cells and formulas should be unlocked).

- 2.6 Volume I for Phase II shall be submitted electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 and include the following information:

- Volume I – Factor I: Design Narrative
- Volume I – Factor II: Management Plan
- Volume I – Factor III: Small Business Participation Plan

NOTE: Failure to place the required submission information under the appropriate tab (factor or sub-factor) may result in a lower rating if the evaluators cannot readily find the appropriate information. Any specified page limits will be strictly adhered to and enforced. Information submitted which exceeds the specified limit will not be evaluated.

- 2.7 Volume II for Phase I shall be submitted in electronically in accordance with the

Proposal Submission Instructions in Section 00 21 00 and include the following information:

- Volume II – Tab A: Standard Form 1442 and Price Breakout Schedule
- Volume II – Tab B: Joint Venture Agreements
- Volume II – Tab C: Evidence of Ability to Obtain Bonding & Proof of Financial Ability
- Volume II – Tab D: Pre-Award Information
- Volume II – Tab E: Subcontracting Plan

NOTE: Failure to place the required submission information under the appropriate tab (factor or sub-factor) may result in a lower rating if the evaluators cannot readily find the appropriate information.

3. Proposal Evaluation Process

- 3.1 A Source Selection Evaluation Board (SSEB) comprised of representatives of the Corps of Engineers, User/Customer, and other required personnel will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. Technical proposals (*i.e.*, the non-price evaluation factors) will be reviewed and rated without knowledge of the price offered. The number and identities of offerors will not be revealed to anyone who is not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based on the factors described herein, and the basis of award is Best Value Trade-Off, as stated above.
- 3.2 The evaluation process for Phase II essentially consists of four parts: proposal compliance/responsibility review, technical evaluation, price evaluation, and price/technical trade-off analysis.
 - 3.2.1 Proposal Compliance/Responsibility Review: This is an initial review to ensure that all required forms and certifications are complete, and that the offeror is financially capable of sustaining performance under the contract and is able to obtain the required level of performance and payment bonds from an acceptable surety.
 - 3.2.2 Technical Evaluation: The SSEB will evaluate and rate the Phase II Volume I proposals against the RFP requirements. Factor I – Design Narrative and Factor II – Management Plan, will be rated using Table 1 below. Factor III – Small Business Participation Plan will be rated using Table 2 below.
 - 3.2.3 Price Evaluation: The SSEB, Contracting Officer and SSA will evaluate price proposals independent of the technical evaluation. The SSEB will not have access to price information until completion of the technical evaluation.
 - 3.2.4 Price/Technical Trade-off Analysis: After all above evaluations are complete, the Contracting Officer and SSA will compare the relative advantages and disadvantages of technical proposals and compare prices. The Source Selection Authority (SSA) will then consider all factors to select the proposal offering the best value to the Government.

4. Proposal Information and Related Evaluation Factors

4.1 Phase II proposals will be evaluated in accordance with the factors below, listed in relative order of importance. **All evaluation factors, other than price, when combined are considered approximately equal to price.** The Government intends to award a contract without negotiations with offerors. Therefore, the offeror's initial proposal should contain the offeror's best terms from a price and technical standpoint. The Government reserves the right to conduct negotiations if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals in accordance with RFO 15.204-1.

4.2 Volume I – Factor I: Design Narrative 1st

4.3 Volume I – Factor II: Management Plan 2nd

4.4 Volume I – Factor III: Small Business Participation Plan 3rd

4.5 Volume II – Price and Business Information

Tab A Standard Form 1442 and Price Breakout Schedule Not Rated

Tab B Joint Venture Agreements Not Rated

Tab C Evidence of Ability to Obtain Bonding
and Proof of Financial Ability Not Rated

Tab D Pre-Award Information Not Rated

Tab E Subcontracting Plan Not Rated

4.6 Ratings:

Evaluators will apply the adjectival rating for the definition that most closely matches the evaluation.

TABLE 1

Combined Technical / Risk Ratings	
Adjectival Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.

Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet the requirements of the solicitation, and thus, contains one or more deficiencies and is unawardable, and/or risk of unsuccessful performance is unacceptably high.

TABLE 2

Small Business Ratings	
Rating	Description
Acceptable	Proposal indicates an adequate approach and understanding of the small business objectives.
Unacceptable	Proposal does not meet the small business objectives.

4.7 Definitions:

1. Deficiency. Any part of an offer that does not conform to a material requirement of a RFP. A material requirement is one that affects price, quantity, quality, or delivery, or that the RFP requires to be met at the time of proposal submission.
See RFO 15.001.

2. Strength. An aspect of an Offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

3. Significant Strength. An aspect of an Offeror's proposal that has appreciable merit or appreciably exceeds specified performance or capability requirements in a way that will be appreciably advantageous to the Government during contract performance.

4. Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance.
See RFO 15.001.

5. Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See RFO 15.001.

6. Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the Offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

7. Clarification. Limited exchanges between the Government and Offerors that may occur when award without negotiations is contemplated. See RFO 15.202(a)(2).

8. Adverse Past Performance. Past performance information that supports a less than satisfactory rating on any evaluation. Adverse past performance that must be addressed with Offerors includes

unfavorable comments received from sources such as those received from respondents from past performance questionnaires or interviews that have not been finalized within a formal rating system.

9. Performance Confidence Assessment. Evaluation of the likelihood (or Government's confidence) that the Offeror will successfully perform the solicitation's requirements; the evaluation is based upon past performance information.

10. Recency. As it pertains to past performance information, recency is a measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant.

11. Relevancy. As it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/ teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood the past performance is an indicator of future performance.

12. Risk. As it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to the technical factor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, or the likelihood of unsuccessful contract performance.

13. Negotiations. Exchanges between the Government and the Offerors that are undertaken with the intent of allowing the Offeror to revise its proposal. Negotiations take place after establishment of the competitive range.

5. Volume I – Factor I: Design Narrative

5.1 Submission Requirements:

- 5.1.1 Provide a clear and concise narrative describing your proposed design process for this project, especially regarding sequencing of work within a two-story new construction addition. Proposed narratives shall also address the design process and logic/rationale for the following project features:

- Civil/Site
- Utilities
- Architectural
- Interiors Design
- FF&E
- Structural Systems
- HVAC and Plumbing
- Electrical and Telecomm
- Life Safety and Fire Protection
- Explosive Site Safety Requirements

NOTE: There is a limit of four (4) single sided, 8.5” x 11” pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Design Narrative factor.

5.2 Evaluation Criteria:

- 5.2.1 The Design Narrative will be evaluated based on the offeror’s understanding of the USACE design / build process. Projects that demonstrate a complete understanding for the design of this project’s requirements may be rated more favorably by the Government. The Government will review and identify any strengths, weaknesses, and any deficiencies in the proposal. A Design Narrative rating will be assigned using the Combined Technical / Risk Ratings in Table 4 Section 4.6.

6.0 Volume I – Factor II: Management Plan

6.1 Submission Requirements:

Provide a project specific management plan narrative that describes how your labor, resources, designers, subcontractors, and material suppliers will be managed, supervised, coordinated, and used to ensure successful completion of the project. Additionally, the Management Plan shall include the following information:

- Describe the duties of the key project delivery staff and how this team will work together to deliver the project during the construction phase.
- Coordination with stakeholders (e.g., USACE, BGAD DPW, privatized utilities, etc.)
- Coordination of construction to ensure minimal impact to installation activities
- Identify significant areas of project specific risk(s) and provide your plan for mitigating these project-specific risk(s) during contract performance.

NOTE: There is a page limit of four (4) single sided, 8.5” x 11” pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides for this factor.

6.2 Evaluation Criteria:

Management Plan narratives will be evaluated based on the level of understanding of the work and the involvement the contractor will have in the management, oversight, control, and coordination of the work performed during construction of the project. Narratives that demonstrate a clear understanding of the project requirements and provide a thorough approach for successfully managing the solicited project may be rated more favorably by the SSEB. The Government will review the Offeror’s proposal and identify any strengths, weaknesses, and any deficiencies in the proposal. A Management Plan rating will be assigned using the Combined Technical / Risk Ratings in Table 4 Section 4.6.

7.0 Volume I – Factor III: Small Business Participation Plan

7.1 Submission Requirements:

THIS FACTOR APPLIES TO ALL OFFERORS REGARDLESS OF BUSINESS SIZE.

The Small Business Participation Plan shall be based on the offeror's best effort and is required to address each of the following areas individually:

- The extent to which the small business programs listed in FAR 19 (small business, small disadvantaged business, woman-owned small business, HubZone, service disabled veteran owned small business, etc.) are specifically identified in the Small Business Participation Plan;
- The extent of participation of such firms in terms of the value of the total acquisition in %'s for the base year and for each individual option year; the extent of commitment to use such firms (for example, enforceable commitments, i.e., teaming agreements signed, are to be considered more heavily than non-enforceable ones);
- The complexity and variety of the work small firms are to perform on this acquisition;
- The practicality of the Small Business Participation Plan, i.e., aggressive goals.

The Small Business Participation Plan shall be organized as follows:

(1) Prime Contractor type of business (check all that apply):

- ☐ Other than Small
- ☐ Small (also check type of small business)
- ☐ Small Non-Disadvantaged Business
- ☐ Small Disadvantaged Business
- ☐ Woman-Owned Small Business
- ☐ HUBZone Small Business
- ☐ Veteran Owned Small Business
- ☐ Service Disabled, Veteran Owned Small Business

(2) Percentage of your participation as a prime contractor: _____ %

NOTE: Small Business primes' self-performance counts as Small Business Participation, and small business primes may achieve small business participation goals through their own performance/participation as a prime and/or through subcontracting to other small businesses.

(3) Percentage of total contract value of subcontracts planned for:

	% of Total Contract Value
Other than Small	%
Total Small ^{1, 2}	%
Small Non-Disadvantaged	%

Small Disadvantaged	%
Small Woman Owned	%
Small HUB Zone	%
Small Veteran Owned	%
Small Service Disabled Veteran Owned ³	%

Each percentage above shall be accompanied by detailed supporting documentation regarding individual commitments.

NOTE:

¹The sum of the percentages of Small Non-Disadvantaged and Small Disadvantaged should equal the entry for the Total Small; however, the sum of all of the percentages need not equal 100% since the prime is not included and individual subcontractors may be counted towards more than one category.

²Pursuant to Section 8(d) of the Small Business Act, a business is considered small for Government procurements if it does not exceed the size standard for the NAICS code that the prime contractor believes best describes the supplies / services being acquired. In other words, the size of the prime's suppliers is determined by the applicable NAICS code of their joint venture, teaming partner, or subcontract, which may or may not be the same NAICS code as the one for the prime contract with the Government.

³SDVOSB goal must be equal to or greater than VOSB. That is because SDVOSBs are also VOSBs; however, VOSBs are not necessarily SDVOSBs.

(4) List principal supplies/services (be specific) to be subcontracted to:

	Name of Company (include UEI if available)	Type of Service/Supply
Other than Small		
Small Non-Disadvantaged		
Small Disadvantaged		
Small Woman Owned		
Small HUB Zone		
Small Veteran Owned		
Small Service Disabled Veteran Owned		

(5) Prior Performance Information: Provide any information substantiating the offeror's track record of utilizing small business on past contracts.

(6) For Large **and** Small Businesses provide descriptive information for all small business categories. Any information concerning long-term relationships with Small Business subcontractors, such as mentor-protégé relationships, should be provided.

(7) Extent of Commitment: Provide documentation regarding enforceable commitments to utilize any small business category as defined in FAR Part 19 as subcontractors.

- (8) Small Business Subcontracting Plan: Each ***Large Business Offeror*** shall provide a Small Business Subcontracting Plan that contains all of the elements required by RFO Clause 52.219-9. This Plan ***shall*** be submitted separately from the Small Business Participation information required above, which applies to both Large and Small Businesses. The Subcontracting Plan is not a requirement for evaluation in source selection but rather a requirement for award to a Large Business. The approved Small Business Subcontracting Plan will be incorporated into any resultant contract.

7.2 Evaluation Criteria:

THIS FACTOR APPLIES TO ALL OFFERORS REGARDLESS OF BUSINESS SIZE.

The Small Business Participation Plan will be evaluated based on the offeror's best efforts, the level of small business commitment that is being demonstrated for the proposed acquisition, and the prior level of commitment to utilizing small businesses in performance of prior contracts.

The Small Business Participation Plan must meet the minimum Total Small Business Participation goal of % (percentage determined by PDT and based on location of project, historical data, etc. Be sure to work with Crystal/Courtney in the development of this percentage.) of the total contract value (through collective small business participation from any type of small business or sub-category small business).

Pursuant to DFARS PGI 215.104-70(a)(1), the following elements will be considered in evaluating an offeror's Participation Plan:

- The extent to which such firms, as defined in FAR Part 19, are specifically identified in plans;
- The extent of commitment to use such firms (enforceable commitments will be weighted more heavily than non-enforceable ones);
- The complexity and variety of the work such firms are to perform;
- The realism of the plans;
- Past performance of offerors in complying with the requirements of the clauses at FAR 52.219-8, Utilization of Small Business Concerns, and 52.219-9, Small Business Subcontracting Plan;
- Participation of such firms in terms of the value of the total acquisition; and
- The extent to which the offeror provides detailed explanations/documentation supporting the proposed participation percentages, or lack thereof.

8.0 Volume II - Price and Business Information

8.1 Tab A - Standard Form 1442 and Proposal Price Breakout Schedule.

8.1.1 Submission Requirements:

The offeror shall complete and submit Standard Form 1442 and Section 00 10 00, Proposal Price Breakout Schedule. Both of these forms are included in Section 00 10 00 of this solicitation.

8.1.2 Evaluation Criteria:

The price will be evaluated on base proposal plus all options . The price will be evaluated for fairness and reasonableness through the use of a price analysis. Price will also be checked for unbalancing of line items. Offerors are cautioned to distribute costs appropriately.

8.2 Tab B – Joint Venture Agreements

8.2.1 Submission Requirements:

If more than one contractor is listed in Block 14, or the offeror listed in Block 14 is a joint venture (JV), then a signed JV agreement must be submitted with the proposal and the offeror shall be registered in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each member of the JV must submit its own Unique Entity Identifier (formally DUNS number) with the proposal.

In addition to the joint venture agreement, small business offerors submitting a proposal as Mentor-Protégé JV under the SBA Mentor-Protégé program (MPP) shall submit a copy of their SBA-approved Mentor-Protégé agreement.

8.2.2 Evaluation Criteria:

This information will be used for purpose of complete the Pre-Award Survey and will not be rated. Small business joint venture agreements must comply with the relevant regulations in Title 13 of the Code of Federal Regulations in order for an offeror to be eligible for any small business set-aside acquisitions and/or small business-related price preference.

9.0 Tab C – Evidence of Ability to Obtain Bonding and Proof of Financial Ability

9.1 Submission Requirements:

A. Financial Capability. Submit Proof of Financial Ability (most recent financial statement covering assets and liabilities). Include the name, address, and telephone number of offeror's banking institution. If the offeror is a joint venture, submit this information for all joint venture members.

B. Bonding Capability. Submit information showing offeror's ability to be bonded for this project. Include the name, address, and telephone number of the offeror's bonding company.

9.1.1 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. See FAR Part 28 for information related to bonds.

9.0 Tab D – Pre-Award Information

9.1 Submission Requirements:

- A. The offeror shall submit one completed copy of Section 00 45 00, Representations and Certification.
- B. The offeror shall submit the following information:
 - a) Number of years the firm has been in business;
 - b) Name, address, and telephone numbers of two credit/trade references;
 - c) A list of present commitments, including the dollar value.

If the offeror is a joint venture, submit this information for all joint venture members.

9.1.1 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated.

8.1 Tab E - Subcontracting Plan

9.2.1 Submission Requirements:

Large business offerors shall submit a Subcontracting Plan in accordance with RFO Clauses 52.219-8 and 52.219-9 Alt II. To be acceptable, plans must adequately address the required statutory elements and provide sufficient information to enable the Contracting Officer to answer affirmatively questions 1 through 13 of Appendix DD, Part 3, AFARS 5119.705. The offeror may use the attached sample sub-contracting plan as a starting point. Percentage goals apply to the total amount being subcontracted.

9.2.2 Evaluation Criteria:

Submitted information will be evaluated for compliance with AFARS 5119.705 and will not be rated. Subcontracting plans must:

- (a) Adequately address the required statutory elements.
- (b) Provide sufficient information to enable the Contracting Officer to answer affirmatively questions 1 through 13 of Appendix DD (AFARS 5119.705), a copy of which is attached.
- (c) To be acceptable, subcontracting plans must meet all of the requirements outlined in Appendix DD, Part 3, AFARS 5119.705.

If negotiations with offerors are opened, those areas where the plan is deficient will be reviewed with each offeror with the goal of correcting deficiencies. Proposals with deficiencies cannot be accepted, and therefore if negotiations are not opened, subcontracting plans may not be correctable and the proposal may be considered unawardable. Offerors are cautioned to carefully prepare the subcontracting plan submitted with their original proposal.

AFARS -- Appendix DD Subcontracting Plan Evaluation Guide

DD-100 Purpose.

The guide provides a methodology for uniform and consistent evaluation of subcontracting plans within the Army. It is designed to facilitate compliance with the mandates of 15 U.S.C. § 637(d) to increase opportunities for small and small disadvantaged businesses.

DD-101 Applicability.

In accordance with requirements of FAR 19.705-4, DFARS 219.705-4 and AFARS 5119.705-4, the contracting officer shall use this guide to review all subcontracting plans (except those for commercial items), including those submitted in response to the provisions in FAR 19.705-2(d) and (e). When the contract will require subcontracting plans, use the clauses designated by FAR 19.708(b)(1) and (2) and DFARS 219.708(b)(1)(A) in the solicitation. A copy of the completed evaluation shall be included in the contract file.

DD-102 Goals.

Contracting officers must place special emphasis on negotiating subcontracting goals that are realistic, challenging and attainable. The plan must express goals in terms of percentages of total planned subcontracting dollars and must be comparable to the dollar commitments in the small business participation plan. In accordance with FAR 19.705-4(d), the contracting officer must review enough evidence to determine that the:

1. Offeror can meet subcontracting plan goals;
2. Offeror's goals are consistent with their cost or pricing data or information other than cost or pricing data;
3. Offeror will honor the terms of subcontract agreements (i.e., timely payments of amounts owed, use of firms cited in proposal, etc.); and
4. Offeror's make or buy policy or program does not conflict with the proposed subcontracting plan and is in the Government's best interest.
5. Plan includes the contractor's commitment to adopt and comply with its requirements and goals for small business utilization.

DD-103 Evaluation Rating.

Either the contracting officer, the small business representative, or both, shall evaluate and rate the

subcontracting plan as “acceptable” or “unacceptable,” in the context of the particular procurement. For instance, in smaller dollar value contracts, or contracts for uniquely manufactured items, it might be impracticable or not cost effective for offerors to take the type of actions that might be appropriate in contracts for larger dollar values or commercial components. To receive an “Acceptable” rating, the contractor must satisfy all objectives in Part 2 and meet each statutory subcontracting plan requirement outlined in Part 3. Failure to receive a subcontracting plan rating of acceptable could jeopardize the offeror’s selection for contract award. The contracting officer must document the decisions in the contract file.

DD-104 Modification of Guide.

Pursuant to AFARS 5101.403, only senior contracting officials may approve individual deviations to this evaluation guide. This approval authority may not be further delegated.

DD-105 Use of Preaward Surveys.

For contracts administered by the Defense Contract Management Agency, obtain information needed to assess contractor compliance with subcontracting plans in current and previous contracts by requesting a preaward survey in accordance with FAR 9.106, DFARS 209.106 and DFARS PGI 209.106.

Part 2 – Rating System

DD-201 Acceptable Plans.

Objective: The subcontracting plan meets all of the requirements outlined in Part 3. The offeror has provided details that demonstrate an acceptable approach to assisting, promoting and utilizing small businesses, small disadvantaged businesses, women-owned small businesses, historically underutilized business zone small businesses, veteran-owned small businesses, service disabled veteran-owned small businesses and, for Defense Research Programs, historically black colleges and universities and minority serving institutions. The offeror has demonstrated an ability to meet prior subcontracting plan goals and honor the terms of subcontract agreements. Offeror has outlined an approach utilizing mentor protégé firms, joint venture teams, or other partners. The subcontracting goals are realistic, challenging, and attainable. Clarifications and minor rework of the submission may be required to correct slight omissions that do not prejudice other offers.

DD-202 Unacceptable Plans.

Objective: The subcontracting plan fails to meet a requirement outlined in Part 3. The offeror has not provided an acceptable approach to assisting, promoting, and utilizing small businesses. The offeror has a history of failing to honor subcontract agreements. The offeror did not discuss the establishment of mentor protégé relationships, teaming, or joint venture agreements with other firms. Ensure the proposed subcontracting goals are attainable in light of the contractor’s past performance in meeting subcontracting goals. Proposed subcontracting goals reflect less than a good faith effort. Substantial rework of the document is required to correct omissions and establish realistic, challenging, and attainable goals. Failure to receive a rating of acceptable may jeopardize offeror’s eligibility for contract award. See FAR 19.702(a)(1).

Part 3 – Subcontracting Plan Requirements

DD-301 Requirements.

If any of the following are answered “NO”, the plan is not acceptable, and the offeror must revise it before contract award. Does the plan:

1. Contain a policy statement or evidence of internal guidance to company buyers that commits to complying with the Small Business Act (Public Law 99-661, Section 1207 and Public Law 100-180)?
2. Identify separate percentage goals for utilizing small businesses (including Alaska Native Corporations (ANCs) and Indian tribes), veteran-owned small businesses (VOSB), service-disabled veteran-owned small businesses (SDVOSB), historically underutilized business zone small businesses (HUBZone), small disadvantaged businesses (SDB), women-owned small businesses (WOSB), and, for Defense Research Programs, historically black colleges and universities and minority serving institutions where applicable? Negotiated subcontracting goals must correlate with percentages of small business utilization identified in the contractor’s small business participation plan, see FAR 15.304 and DFARS 215-304, and/or minimum targets identified in the solicitation or contract modification. FAR 19.704(a)(1).
3. Project the total dollars planned to be subcontracted and a separate statement of the total dollars planned to be subcontracted to small business (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB, and WOSB concerns? FAR 19.704(a)(2).
4. Describe the principal types of supplies and services to be subcontracted and identify the types planned for subcontracting to small business (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB and WOSB concerns?
5. Describe the method to be used to develop the subcontracting goals? FAR 19.704(a)(4)
6. Describe the method for identifying potential sources for solicitation purposes? FAR 19.704(a)(5)
7. State if the offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with small business, VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns? FAR 19.704(a)(6)
8. Identify the name of the employee who will administer the offeror’s subcontracting program and describe that person’s duties? FAR 19.704(a)(7)
9. Provide an approach for ensuring that small businesses, VOSB, SDVOSB, HUBZone, SDB, (including ANCs and Indian tribes) and WOSB concerns will have an equitable opportunity to compete for subcontracts?
10. Require the offeror to include the clause at FAR 52.219-8, Utilization of Small Business Concerns in all subcontracts that offer further subcontracting opportunities and require all subcontractors (except small business concerns) that receive subcontracts over \$650,000 (\$1,500,000 for construction) to adopt a plan that complies with the requirements of the clause at FAR 52.219-9 Alt II, Small Business Subcontracting Plan?

11. Provide assurances that the offeror will:

- a. Cooperate in required studies or surveys;
- b. Submit periodic reports so that the Government can determine the extent of offeror's compliance with the subcontracting plan;
- c. Submit semi-annual Individual Subcontract Reports (ISRs) and/or Summary Subcontract Reports (SSR) in the Electronic Subcontracting Reporting System (eSRS) (<http://www.esrs.gov>) in accordance with FAR 52.219-9 Alt II or provide other ancillary reports as requested by the contracting officer or Army Small Business Office;
- d. Ensure that its subcontractors with subcontracting plans agree to submit the ISRs and/or SSRs using the eSRS;
- e. Provide its prime contract number and its DUNS number and the e-mail address of the Government or contractor employee responsible for acknowledging or rejecting the reports, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their reports; and
- f. Require each subcontractor with a subcontracting plan to provide the prime contract number and its own DUNS number, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to its subcontractors with subcontracting plans? FAR 19.704(10)

12. Describe the types of records that the contractor will maintain concerning procedures adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the offeror's efforts to locate small business, VOSB, SDVOSB, HUBZone, SDB, and WOSB concerns and to award subcontracts to them? FAR 19.704(11)

13. Does plan, pursuant to FAR 19.704(11)(c), provide a separate goal for the basic contract and, if applicable, each option?

SMALL BUSINESS SUBCONTRACTING PLAN (SAMPLE)

Revised January 2017

Federal Acquisition Regulation (FAR), paragraph 19.708(b)(1)) prescribes the use of the clause at FAR 52.219-9 entitled "Small Business Subcontracting Plan." The following is a suggested model for use when formulating such subcontracting plan. While this model plan has been designed to be consistent with FAR 52.219-9, other formats of a subcontracting plan may be acceptable. However, failure to include the essential information as exemplified in this model may be cause for either a delay in acceptance or the rejection of a bid or offer where the clause is applicable. Further, the use of this model is not intended to waive other requirements that may be applicable under FAR 52.219-9. "SUBCONTRACT," as used in this clause, means any agreement (other than one involving an employer-employee relationship) entered into by a federal government prime contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract.

I. IDENTIFICATION DATA:

Company Name: _____

Address: _____

Date Prepared: _____ Solicitation Number: _____

Description: _____

Estimated Contract Dollar Value: _____

II. TYPE OF PLAN (circle one)

- A. Individual Plan (All elements developed specifically for this contract and applicable for the full term of this contract, including any option periods.)
- B. Master Plan (Goals developed for this contract; all other elements standard; must be renewed every three years)
- C. Commercial Plan Commercial products/service plan, including goals, covers the offeror's fiscal year and applies to the entire production of commercial items or delivery of services sold by either the entire company or a portion thereof (e.g., division, plant, or product line); this includes planned subcontracting for both commercial and Government business. In accordance with FAR 19.704(d), "A commercial plan (as defined in FAR 19.701) is the preferred type of subcontracting plan for contractors furnishing commercial items." (Contractor sells large quantities of off-the-shelf commodities to many Government agencies. Plans/goals negotiated by a lead agency on a company-wide basis rather than for individual contracts. Plan effective only during the year for which it is approved. The contractor must provide a copy of the lead agency approval.)

III. GOALS:

(For information purposes only: FAR 19.704(a)(1) requires separate percentage goals for using Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns as subcontractors; and a statement of the total dollars planned to be subcontracted to Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns. NOTE: The dollar amounts planned for subcontracting must be expressed as percentages of total subcontracting dollars as shown below.)

State separate dollar and percentage goals, expressed in terms of percentages of total subcontracting dollars, for the use of Large Business, Small Business, Veteran-Owned Small Business, Service Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, Woman-Owned Small Business, and Historically Black Colleges and Universities/Minority Institutions concerns as subcontractors. The offeror shall include all subcontracts that contribute to contract performance, and may include a proportionate share of products and services that are normally allocated as indirect costs in the following format. (For a contract with options, provide a separate statement for the basic contract and individual statements for each option year.)

- A. **BASE BID ONLY:** The following percentage goals (expressed in terms of a percentage of total planned subcontracting dollars) and dollar amounts are applicable to the contract cited above or to the contract awarded under the solicitation cited. Total Base Bid is \$ _____.
- (i) Total estimated dollar value of all planned subcontracting for an individual contract plan; or the offerors total projected sales, expressed in dollars, and the total value of projected subcontracts to support the sales for a commercial plan; i.e., the sum of a and b above: \$ (100 Percent) \$ _____ and _____ %
- (ii) Total estimated dollar value and percent of planned subcontracting with Small Business (including Veteran-Owned Small Business, Service Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, Woman-Owned Small Business, and Historically Black Colleges and Universities/Minority Institutions concerns): (% of "(i)") \$ _____ and _____ %
- (iii) Total estimated dollar value and percent of planned subcontracting with large businesses (all business concerns classified as "other than small"): (% of "(i)") \$ _____ and _____ %
- (iv) Total estimated dollar value and percent of planned subcontracting with Small Disadvantaged Business concerns (SDB): \$ _____ and _____ % of total planned subcontracting dollars under this contract will be awarded to subcontractors who are small concerns owned and controlled by socially and economically disadvantaged individuals and appear on the Small Business Administration's list. (% of "(i)")
- (v) Total estimated dollar value and percent of planned subcontracting with Women-Owned Small Business concerns (WOSB): \$ _____ and _____ % of total planned subcontracting dollars under this contract will be awarded to subcontractors who are WOSB. (% of "(i)")
- (vi) Total estimated dollar value and percent of planned subcontracting with Veteran-Owned Small Business concerns (VOSB): \$ _____ and _____ % of total planned subcontracting dollars under this contract will be awarded to subcontractors who are VOSB. (% of "(i)")
- (vii) Total estimated dollar value and percent of planned subcontracting with Service-Disabled Veteran-Owned Small Business concerns (SDVOSB): \$ _____ and _____ % of total planned subcontracting dollars under this contract will be awarded to subcontractors who are SDVOSB. (% of "(i)")

(viii) Total estimated dollar value and percent of planned subcontracting with Historically Black Colleges and Universities/Minority Institutions (HBCU/MI): \$ _____ and _____ % of total planned subcontracting dollars under this contract will go to HBCU's who are an institution determined by the Secretary of Education to meet the requirements of 34 CFR 608.2, the term also includes any nonprofit research institution that was an integral part of such a college or university before November 14, 1986; or MI's who are an institution of higher education meeting the requirements of Section 1046(3) of the Higher Education Act of 1965 (20 U.S.C. 1135d-5(3)) which, includes a Hispanic-serving institution of higher education as defined in Section 316(b)(1) of the Act (20 U.S.C. 1059c(b)(1)). (% of "(i)")

(ix) Total estimated dollar value and percent of planned subcontracting with HUBZone Small Business concerns: \$ _____ and _____ % of total planned subcontracting dollars under this contract will go to subcontractors who are small business concerns located in a historically underutilized business zone which is an area located within one or more qualified census tracts, qualified non-metropolitan counties, or lands within the external boundaries of an Indian reservation and appear on the Small Business Administration's HUBZONE web site at www.sba.gov/HUBZONE. (% of "(i)")

The following principal products and/or services will be subcontracted under the Base Bid of this contract, and the distribution among Large Business, Small Business, Veteran-Owned Small Business, Service Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, Woman-Owned Small Business, and Historically Black Colleges and Universities/Minority Institutions is as follows: **(Check all that apply)**

Subcontractor Name	Product or Service/ Description	Large Business	Small Business	VOSB	SDVOSB	HSB	SDB	WOSB	HBCU/ MI

(ATTACHMENT MAY BE USED IF ADDITIONAL SPACE IS REQUIRED)

- B. **OPTIONS:** You must include a separate goal for each option. See the attached Continuation Sheet for Paragraph A for each option.

- C. The following method was used in developing subcontract goals (i.e., Statement explaining how the product and service areas to be subcontracted were established, how the areas to be subcontracted to Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns were determined, and how Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns' capabilities were determined, to include identification of source lists utilized in making those determinations. Also a statement as to what efforts will be taken to improve on past goals and how SB and SDB firms will be included in areas without previous SB/SDB involvement).

- D. A description of the method used to identify potential **SOURCES** for solicitation purposes (e.g., whether you used existing company source lists, the System for Award Management (SAM)) of the Small Business Administration (SBA), veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, disadvantaged, and women-owned small business trade associations. A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned, service-disabled veteran-owned, HUBZone small, small disadvantaged and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities e.g., outreach, assistance, counseling, and publicizing subcontracting opportunities) in this clause.

- E. Indirect and overhead costs (check one): ____ HAVE ____ HAVE NOT been included in the goals specified in Paragraph A and Paragraph B.

- F. If "HAVE" was selected in Paragraph E, explain the method used in determining the proportionate share of indirect and overhead cost to be allocated as subcontracts to Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns. (NOTE: Commercial Plans Must Include Indirect Costs).

IV. PROGRAM ADMINISTRATOR:

(For information purposes only: FAR 19.704(a)(7) requires information about the company employee who will administer the subcontracting program. Please provide the name, title, address, telephone number, fax machine number, email address, position within the corporate structure, and the duties of that employee.)

Name: _____

Title: _____

Position: _____

Address: _____

Telephone No: _____

Fax No: _____

Email Address: _____

This individual's specific duties, as they relate to the firm's subcontracting program, are as follows:
General overall responsibility for this company's Small Business Program, the development, preparation and execution of individual subcontracting plans and for monitoring performance relative to contractual subcontracting requirements contained in this plan, including but not limited to:

- A. Developing and maintaining offerors/bidders lists of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns from all possible sources. Our firm may rely on the information contained in the SBA Small Business Source System, as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business source list. The Small Business Administration's (SBA's) list of Small Disadvantaged Businesses and small HUBZone businesses can be accessed through www.sam.gov. Select "Dynamic Small Business Search" to access the SBA small business source system.
- B. Ensuring that procurement packages are structured to permit Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns to participate to the maximum extent possible.
- C. Assuring inclusion of Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns in all solicitations for products or services that they are capable of providing.
- D. Reviewing solicitations to remove statements, clauses, etc., which may tend to restrict or prohibit Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business participation, including recommendations to set aside competitions for SDB's
- E. Ensuring periodic rotation of potential subcontractors on bidders' lists.
- F. Ensuring that the bid proposal review board documents its reasons for not selecting low bids submitted by Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns.

- G. Ensuring the establishment and maintenance of records of solicitations and subcontract award activity.
- H. Attending or arranging for attendance of company counselors at Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, etc.
- I. Conducting or arranging for conduct of motivational training for purchasing personnel pursuant to the intent of Public Laws 95-507, 99-661, and 100-180.
- J. Monitoring attainment of proposed goals.
- K. Preparing and submitting timely, required subcontract reports
- L. Coordinating contractor's activities during the conduct of compliance reviews by Federal agencies.
- M. Coordinating the conduct of contractor's activities involving its Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business subcontracting program.
- N. Ensuring Individual Subcontract Reports (ISRs) and Summary Subcontract Reports (SSRs) are submitted using eSRS (<http://www.esrs.gov>), following the instructions in the eSRS.
- O. Notifying the Contracting Officer or his representative in writing of any substitutions of firms that are not Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business for the firms listed in the subcontracting plan.
- P. Additions to (or deletions from) the duties specified above are as follows:

V. **EQUITABLE OPPORTUNITY:**

(For information purposes only: FAR 19-704(8) requires a description of the efforts the contractor will make to ensure that Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns will have an equitable opportunity to compete for subcontracts.)

The following efforts will be taken to assure that Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns will have an equitable opportunity to compete for subcontracts, including items not traditionally awarded to SB or SDB firms:

- A. Outreach efforts will be made by:
 - (i) Contacts with minority and small business trade associations such as veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce.
 - (ii) Contacts with business development organizations.

- (iii) Attendance at small and minority business procurement conferences and trade fairs.
- (iv) Sources will be requested from Small Business Administration's small business source system.
- (v) Reviews to determine the competence, ability, experience and capacity available from SB and SDB firms and providing technical assistance to same.
- (vi) Evaluations of our SB, SDB, WOSB, VOSB, SDVOSB and HUBZone award performance and program effectiveness against goals established company-wide.

B. The following internal efforts will be made to guide and encourage buyers:

- (i) Workshops, seminars and training programs will be conducted.
- (ii) Activities will be monitored to evaluate compliance with this subcontracting plan, evaluating SB, SDB, WOSB, VOSB, SDVOSB and HUBZone award performance and program effectiveness.
- (iii) Small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concern source lists, guides and other data identifying small, small disadvantaged and women-owned small business concerns will be maintained and utilized by buyers in soliciting subcontracts.
- (iv) Additions to (or deletion from) the above listed efforts are as follows:

VI. FLOW DOWN CLAUSE:

(For information purposes only: FAR 19-704(a)(9) requires that your company include FAR 52.219-8, "Utilization of Small Business Concerns," in all subcontracts that offer further subcontracting opportunities. Your company must require all subcontractors, except small business concerns, that receive subcontracts in excess of \$700,000 (\$1,500,000 for construction) to adopt a plan that complies with the requirements of FAR 52.219-9, "Small Business Subcontracting Plan.")

The offeror (contractor) agrees that the clause entitled "Utilization of Small Business Concerns" at FAR 52.219-8 will be included in all subcontracts that offer further subcontracting opportunities, and all subcontractors (except small business concerns) who receive subcontracts in excess of \$700,000 (\$1,500,000 for construction) will be required to adopt a subcontracting plan that complies with FAR 52.219-9. Such plans will be reviewed by comparing them with the provisions of Public Law 95-507, and assuring that all minimum requirements of an acceptable subcontracting plan have been satisfied. The acceptability of percentage goals shall be determined on a case-by-case basis depending on the supplies/services involved, the availability of potential Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business subcontractors, and prior experience. Once approved and implemented, plans will be monitored through the submission of periodic reports, and/or, as time and availability of funds permit, periodic visits to subcontractors facilities to review applicable records and subcontracting program progress.

VII. REPORTING AND COOPERATION:

(For information purposes only: FAR 19-704(a)(10) requires your company (i) cooperate in any studies or surveys as may be required, (ii) submit periodic reports which show compliance with the subcontracting plan; (iii) submit the Individual Subcontract Report (ISR), and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS);, (iv) ensure that subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using eSRS, (v) provide the prime contract number, DUNS number, and the e-mail address of the offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs, and (vi) require that each subcontractor with a subcontracting plan provide the prime contract number, its own DUNS number, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.)

The offeror/contractor agrees to submit such periodic reports and cooperate in any studies or surveys as may be required by the contracting agency or the Small Business Administration in order to determine the extent of compliance by the offeror/contractor with the subcontracting plan and with the clause entitled "Utilization of Small Business Concerns," contained in the contract. The above reports will include submission of its Individual Subcontracting Report (ISR) and Summary Subcontract Report (SSR)

The offeror/contractor further agrees to ensure that its subcontractors agree to submission of ISRs and SSRs. **ISRs and SSRs shall be submitted via the Electronic Subcontracting Reporting System (eSRS) website www.esrs.gov**

Reporting Period	Report Due	Due Date
Oct 1 - Mar 31	ISR/SF294	4/30
Apr 1 - Sept 30	ISR/SF294	10/30
Oct 1 – Mar 31	SSR/SF295	4/30 (for contracts with the DOD)
Apr 1 – Sept 30	SSR/SF295	10/30 (for contracts with DOD)
Oct 1 - Sept 30	SSR/SF295	10/30 (for civilian agencies)
Contract Completion	SSR/SF295	30 days after close of contractor's fiscal year (Commercial Plan)

VIII. RECORDKEEPING:

(For information purpose only: FAR 19-704(a)(11) requires a list of the types of records your company will maintain to demonstrate the procedures adopted to comply with the requirements and goals in the subcontracting plan.)

The offeror/contractor agrees that he will maintain at least the following types of records to document compliance with this subcontracting plan:

- A. Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concern source lists, guides and other data identifying SB/SDB concerns.

- B. Organizations contacted for Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business sources.
- C. On a contract-by-contract basis, records on all subcontract solicitations over \$150,000, indicating on each solicitation (i) whether small business concerns were solicited, and if not, why not; (ii) whether Veteran-Owned Small Business concerns were solicited, and if not, why not; (iii) whether Service-Disabled Veteran-Owned Small Business concerns were solicited, and if not, why not; (iv) whether HUBZone Small Business concerns were solicited, and if not, why not; (v) whether Small Disadvantaged business concerns were solicited, and if not, why not; (vi) whether Women-Owned Small Business concerns were solicited, and if not, why not; and (vii) reasons for the failure of solicited Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns to receive the subcontract award.
- D. Records to support other outreach efforts: Contacts with veteran service organizations, Minority and Small Business Trade Associations, etc., and attendance at small and minority business procurement conferences and trade fairs.
- E. Records to support internal activities to guide and encourage buyers: Workshops, seminars, training programs, etc., monitoring activities to evaluate compliance.
- F. On a contract-by-contract basis, records to support subcontract award data to include name and address and business size of each subcontractor. Contractors having commercial plans need not comply with this requirement.
- G. Records to be maintained in addition to the above are as follows:

IX. ASSURANCES

(For information purpose only: FAR 19.704(a)(12-15) requires assurances from your company)

- A. Assurances that the offeror will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that the offeror used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. An offeror used a small business concern in preparing the bid or proposal if--
 - (i) The offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the contract; or
 - (ii) The offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the offeror is awarded the contract;
- B. Assurances that the contractor will provide the contracting officer with a written explanation if the contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in (a)(12) of this section. This written explanation will be submitted to the contracting officer within 30 days of contract completion; and

- C. Assurances that the contractor will not prohibit a subcontractor from discussing with the contracting officer any material matter pertaining to payment to or utilization of a subcontractor.
- D. Assurances that the offeror will pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the contracting officer if the offeror pays a reduced or an untimely payment to a small business subcontractor (see [52.242-5](#)).

X. SIGNATURES REQUIRED:

This subcontracting plan was SUBMITTED by:

Signature: _____ Date: _____

Typed Name and Title: _____

Phone Number: _____

Contracting Officer Approval: _____ **Date:** _____

NAME OF OPTION: _____

The following principal products and/or services will be subcontracted under Option 1 of this contract, and the distribution among LB, SB, SDB, WOSB, VOSB, SDVOSB, HBCU/MI, and HUBZone SB is as follows: **(Check all that apply)**

[illegible]